

Kohler India Privacy Policy

In this policy, "user" refers to persons registered on the website of Kohler India Corporation Private Limited (hereinafter referred to as "Kohler India"). This includes users viewing and users purchasing on the said website.

<https://www.kohler.co.in/> is a website owned by Kohler India having its registered office at 26A, Lajpat Nagar, New Delhi, Delhi 110024.

The website <https://www.kohler.co.in/> is an intermediary platform providing a B2C (Business to Customers) online platform for users to purchase sanitary ware and kitchen and bath products from Kohler. Users will receive confirmation with respect to the orders placed by them and will have to make payment for the same and the entire interaction is governed by the terms and conditions of this website, which the user expressly agrees to be bound by.

We are committed to safeguarding the privacy of our website visitors and users; this policy sets out how we will treat the user's personal information. Please take a moment to familiarize yourself with our privacy practices which are mentioned under various headings below, and contact us if you have questions

This Policy supplements the "Terms and Conditions" (the "Agreement"). Thus, this Policy is incorporated into and governed by all of the terms of the Agreement. In the event of any conflict between the terms of the Agreement and this Policy, the terms of this Policy shall have an overriding effect.

Our website <https://www.kohler.co.in/> (hereinafter referred to as the "website") uses cookies in order to improve customer experience online. By using this website, the user consents to our use of cookies in accordance with the terms of this policy.

1. The web server used by our website uses an extended log file format that captures: date and time of visit, referring address (location from which a visitor comes to our website), type of Internet browser, and visitor's IP address (Each computer that connects to the

Internet is assigned a unique number, an IP address, for identification purposes).

WHAT PERSONAL DATA WE COLLECT ABOUT YOU

At KOHLER, we believe that you can have great products and great privacy. This means that we strive to collect only the personal data that we need.

2. We may collect store and use the following kinds of personal information:

- a. Information about the user's computer and about the user's visits to and use of this website (including the user's IP address, geographical location, browser type and version, operating system, referral source, length of visit, page views, website navigation and other information collected by Google Analytics or any other analytical tool.
- b. Information relating to any data entered into the website by the user;
- c. Information that the client provides to us for the purpose of registering with us (including the user's personal information, company details, GSTIN, Email ID, the user's address and the user's contact information, etc.);
- d. Data provided to us through social media properties ("Our Social Media");
- e. Data provided to us through HTML-formatted email messages that we send to you that link to this Privacy Policy ("Emails");
- f. Data provided to us through our registration process for newsletters, seminars, webinars and events.
- g. Any other information that the user chooses to send to us;
- h. We store the user's preferences for their convenience, to provide them with a more personalized experience.
- i. Biometric data ("Biometric Data"), which is an individual's physical or human characteristics that can be used to identify a person by voiceprint, fingerprints, facial shape, or scan of a finger, may be collected. We may at times collect, use, or handle biometric information for our connected products (e.g. smart products, IOT

Devices).

Biometric information means any information, regardless of how it is captured, converted, stored, or shared, based on an individual's biometric identifier used to identify an individual. The processing of this data/ information shall be done in Compliance with the Information Technology Act, 2000 and its Rules as may be amended and applicable from time to time.

3. The User may request to cancel their registration. to the site or request the removal of their registered information from member records by emailing cust_service@kohler.com which permission may or may not be granted. However, we will send you an email to confirm – user's request. After the user responds, the Company will in most cases, remove his/her information from its "live" database, but residual information may remain in archives and records. In addition, if a user account is being terminated for violations of the Agreement, the Company may keep some of the user registration information active to prevent re-registration.

COOKIE POLICY

This Site does not use cookies to collect personal information, and this Site does not use the collected data for purposes other than those listed in this Site's privacy policy.

4. This policy provides you with information about the type and working of cookies. By using this Site, you provide express consent to Kohler India Corporation Private Limited to use cookies for your device used to access this Site. However, you may to opt-out or block certain cookies at any time. You can find out more

5. A cookie is a file containing an identifier (a string of letters and numbers) that is sent by a web server to a web browser and stored by the browser. The identifier is then sent back to the server each time the browser requests a page from the server. This enables the web server to identify and track the web browser.

6. To make this website (Site) work properly, and to provide the most relevant products and services to visitors to the site, we use cookies for your device. Cookies help us enhance your experience and also help us understand how people use our site, such as which pages are most popular so that we can better serve Site users.

7. Cookies can be divided into several categories. Cookies that are strictly necessary to use this website and cannot be disabled. They do not gather any marketing information. Performance cookies gather anonymous information regarding visitor usage of this website about the pages visited and any errors or prompts while using the portal. Functionality cookies allow this Site to remember choices you make (such as your username, language or the region you are in) and provide enhanced, more personal or customized features. The information these cookies collect may be anonymized and these cookies cannot track your browsing activity on other websites.

8. Kohler India may use both the following cookies based on their usage for improving the user experience while using the website:

- a. Session cookies are only stored in the cookie file while you are using this Site and will be deleted from the user's computer when the user closes his browser.
- b. Persistent cookies are stored for a specific time, but each cookie may have a different lifespan.

Kohler India uses session cookies to keep track of the user whilst the user navigates the website; keep track of activities of the user's selected services portfolio; prevent fraud and increase website security. We use the persistent cookies to enable our website to recognize the user when the user visits; and keep track of the user's preferences in relation to the use of our website

9. Third-Party Websites' Cookies:

When using this Site, you may be directed to other websites for services provided by third parties. These websites may use their own cookies. We do not have control over the placement of cookies by other websites you visit, even if you are directed to them from our website.

10. How to Contact Us

If you have any questions regarding our use of cookies, please contact us at KohlerGlobalDataPrivacy@kohler.com.

HOW & WHY WE USE YOUR PERSONAL DATA

11. Personal information submitted to us via this website will be used for the purposes specified in this privacy policy or in relevant parts of the website. Personal information includes the user's name, address, mobile number, email id and any other contact details shared by the user at the time of registering with our portal.

We may use the user's personal information to:

- (a) Administer the website;
- (b) Improve the user's browsing experience by personalizing the website;
- (c) Enable the user's use of the services available on the website;
- (d) Send the user marketing commercial communications consented to by the user by virtue of agreeing to the terms and conditions;
- (e) Send the user email notifications, which the user has specifically requested;
- (f) Deal with enquiries and complaints made by or about the user relating to the website;
- (g) Keep the website secure and prevent fraud;
- (h) Send the user transaction-related information;

Where the user submits personal information for publication on our website, we will publish and otherwise use that information in accordance with the license the user grants to us.

The User by accepting this Privacy Policy expressly consents to allow us to provide his personal information to any third parties for the purpose of direct/indirect marketing.

We shall also disclose the User's personal information if it is mandatory for us to do so under Indian Laws or in compliance with an Order/Judgement by a Court of competent jurisdiction.

SHARING AND TRANSFERRING YOUR PERSONAL DATA

12. We may disclose information about the user to any of its employees, officers, authorised dealers, agents or sub-contractors insofar as reasonably necessary for the purposes as set out in this privacy policy.

In addition, we may disclose the user's personal information:

- (a) To the extent that are required to do so by law;
- (b) In connection with any legal proceedings or prospective legal proceedings;
- (c) In order to establish, exercise or defend our legal rights (including providing information to others for the purposes of fraud prevention and reducing credit risk);
- (d) To any person who we reasonably believes may apply to a court or other competent authority for disclosure of that personal information where, in its reasonable opinion, such court or authority would be reasonably likely to order disclosure of that personal information.

Except as provided in this privacy policy, we will not provide the user's information to third parties. The user expressly agrees to such transfers of personal information.

HOW WE PROTECT YOUR DATA

13. We take reasonable technical and organizational precautions to prevent the loss, misuse or alteration of the user's personal information. We store all the personal information the user provides to us on secure (Encrypted, password- and firewall-protected) servers.

The user is responsible for keeping the user's password and user details confidential. We will never ask the user for the user's password (except when the user log in to the website). We shall never send the user any emails requesting the user to make online payments, any transaction undertaken by the user in response to such phishing emails shall be at the user's own risk, and we shall not be liable for the same.

YOUR CONTROL AND CHOICES

14. A user may instruct us to provide him with any personal

information we hold about him. Provision of such information will be subject to the supply of appropriate evidence of his identity (for this purpose, we will usually accept a photocopy of the user's passport certified by a solicitor or bank plus an original copy of a utility bill showing the user's current address).

HOW LONG DO WE KEEP YOUR DATA

15. We keep the user's information for as long as the user's account is active or as per our internal policies. However, in case of direction by the Court or legal authorities, we shall retain the user's information for a longer period as may be stipulated by the authorities.

16. It is the responsibility of the user to ensure that the personal information provided to us is updated. If the personal information which we hold about the user needs to be corrected or updated, then the user is required to make the requisite changes at the earliest.

17. The User enters any Content (as defined in the Terms of Use/Terms & Conditions) on this website at his own risk. We are not responsible for circumvention of any privacy settings or security measures contained on the website. The user understands and acknowledges that, even after removal, copies of user Content may remain viewable in cached and archived pages or if other users have copied or stored his/her Content.

Any improper collection or misuse of information provided on the website is a violation of the website's Terms of Use/Terms & Conditions and should be reported to support@kohlerindia.com.

18. The Company may allow users to register or login via social media or any other third-party sources, such as, Facebook, Twitter, LinkedIn, Yahoo, or Google, etc. The Company may collect "Personally Identifiable Information", which includes but is not limited to, name, age, gender, postal address, telephone number, e-mail address, Company Name, Mobile Number, Fixed Line Number, PAN card Number, Service tax registration or other background information provided by the user, or by any third party regarding the user relating

to the user's Web-activity or other information that can be used to contact the user or identify the user as an individual rather than an automated software. Information availed through third-party sources is subject to permissions and licenses as granted by the third party. The company may require its users to furnish additional information as may be required to improve user experience or improve our services.

Users registering from external or third-party websites may be required to furnish additional information to register, subscribe to or sign up for our services.

19. The company employs several third-party specialist companies and persons to perform specific tasks on our behalf for which the company may need to share your personally identifiable information with them to provide some or all of products or services for which the user may have subscribed for. Unless the company informs the user otherwise, our agents do not have any right to use the personally identifiable information that we share with them beyond what is necessary to assist the company in performing such tasks efficiently. Such services may include, but are not limited to, mail courier services, email delivery services and money transaction services, etc.

20. We employ the best level of cyber security as per industry standards and undertakes privacy audits periodically to provide the customers/ users a safe and secure experience on the website. We are compliant with the Reasonable Security Practices and Rules under the Information Technology Act, 2000.

21. The website uses industry-standard methods of securing its databases of user information and data shared on the website by users, such as, if and where appropriate, firewalls and limits on who can access user information databases. However, please keep in mind that there is no such thing as perfect security on the Internet.

22. If user has any clarifications with respect to this privacy policy or our treatment of their personal information, they can send an email to

23. The company reserves the right to amend this Privacy Policy from time to time. Use of information that the company collects now is subject to the Privacy Policy in effect at the time such information is used. The User agrees that he will routinely check this link for any updates and changes to the Privacy Policy. The amendments to this Privacy Policy shall be binding on the User from the time when it is updated on our website/portal.

24. PRIVACY RIGHTS FOR THE RESIDENTS OF INDIA

I. RIGHT TO ACCESS PRIVACY NOTICE AND CONSENT IN NATIVE LANGUAGE

You have the right to read this policy or any request from Kohler seeking personal information in a clear and plain language, with the option to access such request in English or any language specified in the Eighth Schedule to the Constitution of India.

II. RIGHT TO ACCESS INFORMATION ABOUT PERSONAL DATA:

- i. you have the right to obtain the summary of all the processing activities undertaken by us with respect to your personal data;
- ii. the identities of all other persons with whom the personal data has been shared by such us, along with a description of the personal data so shared.

III. RIGHT TO CORRECTION AND ERASURE OF PERSONAL DATA:

- a. You shall have the right to correction, completion, updating and erasure of your personal data for the processing of which you have previously given consent, in accordance with any requirement or procedure under any law for the time being in force.
- b. You have right to request for correction, completion or updating of your data—
- c. correct the inaccurate or misleading personal data;
- d. complete the incomplete personal data; and
- e. update the personal data.
- f. You have right for erasure of your personal data, and upon receipt of such a request, we shall erase her personal data unless retention of the same is necessary for the specified purpose or for compliance with any law for the time being in force.

IV. RIGHT OF GRIEVANCE REDRESSAL:

You shall have the right to have readily available means of grievance redressal provided by us.

V. RIGHT TO NOMINATE

You shall have the right to nominate, any other individual, who shall, in the event of your death or incapacity, exercise your privacy rights in relation to the personal information.

VI. RIGHT TO WITHDRAW CONSENT:

You have the right to withdraw your earlier given consent at any point of time.

25. USE OF OUR SERVICES BY MINORS & PERSON WITH DISABILITY

The goods and services we provide are not directed to individuals

under the age of [Eighteen (18)], and we do not knowingly collect Personal Information from individuals under [18]. Further, we do not knowingly offer goods and services to persons who are incapacitated to contract as per the Indian Contract Act due to any disability.

26. CROSS-BORDER TRANSFER OF PERSONAL DATA

In connection with the transfer personal of data into another jurisdiction only if the country ensures the same level of protection and may be allowed only if it is necessary for the performance of the lawful contract between the body corporate or any person on its behalf and the provider of information or where such person has consented to data transfer.

27. INTIMATION OF BREACH OF PERSONAL DATA

In the event of a personal data breach, Kohler will provide necessary intimation to the Data Protection Board and to you about the data breach.

We will notify you of the changes to the Privacy Policy and such notifications shall deemed to be incorporated in the Privacy Policy from the date of notification.